

Pravesh Singh Tomar vs State Of U.P. And Another on 22 May, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2023:AHC:112670

Court No. - 79

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 812 of 2021

Applicant :- Pravesh Singh Tomar

Opposite Party :- State Of U.P. And Another

Counsel for Applicant :- Upendra Upadhyay, Anoop Kumar Mishra, Dharmendra Pratap Singh, Sus

Counsel for Opposite Party :- G.A., Narendra Kumar Singh, Rajendra Kumar Dubey, Santosh Kum

Hon'ble Mayank Kumar Jain, J.

1. Heard learned counsel for the applicant, learned A.G.A. for the State and learned counsel for the informant and perused the record.

2. The present bail application has been filed on behalf of applicant in Case Crime No. 26 of 2020, under Section 376D, 313, 323, 504, 506 of IPC and Section 5/6 of POCSO Act, Police Station Kotwali Fatehgarh, District Fatehgarh/Farrukhabad with the prayer to enlarge the applicant on bail.

3. It is submitted that applicant is the father of the victim and false and baseless allegations are levelled by the informant against the applicant which are imaginary and having no substance. In her statement under Section 161 Cr.P.C. the informant stated that applicant ousted her along with his daughter Ananya from his house. Till the year 2011 the informant had no concern with the applicant, therefore, the entire prosecution story of committing rape with his own daughter is completely unbelievable. The medical report does reveal any external or internal injury on the person of the prosecutrix which also indicate that the allegation of rape against the applicant is false and baseless and the doctor after concluding the medical examination opined that there was no evidence of use of force. Dr. Meenu, who examined the prosecutrix also opined that no internal or

external injury was observed on the person of the victim.

4. It is further submitted that the informant is the wife of the applicant against whom several cases remained pending for judicial separation and other matrimonial disputes since 2003. Applicant filed a Petition No.398 of 2003 under Section 9 of Hindu Marriage Act in the Court of the Civil Judge, Senior Division, Farrukhabad. The informant appeared on 09.10.2003 in the aforesaid case and file an application under Section 24 of Hindu Marriage Act seeking maintenance pendente-lite which demonstrate that informant left the house of the applicant since 12.03.2003 and was living with her parents. Thereafter on 22.10.2004 father and two brothers of the informant filed criminal case no.770 of 2004 under Section 307/34 , 506 of IPC, P.S. Kotwali, District Farrukhabad in which the father of the applicant was made accused and as a cross case crime number 770A/2004 under Section 454, 323, 504, 506 of IPC, PS Kotwali, District Farrukhabad was lodged by the applicant against father in law and two brothers. . In both cases the parties arrived for a compromise and both parties were acquitted on that basis. After this the informant came to live with the applicant for two months but thereafter she again left the house of the applicant. It is further submitted that another case of maintenance numbered as 96/12 of 2006 under Section 125 Cr.P.C. was filed against the applicant by the informant seeking maintenance for herself and her daughter (prosecutrix). In this petition the informant has stated that she was living separately with her husband since 12.03.2003 and by the order of the Court the applicant is paying maintenance. The petition under Section 9 of the Hindu Marriage Act filed by the applicant was decreed by the Court and the informant were directed to live along with applicant. Against this judgment the appeal is pending consideration.

5. It is further contended that Divorce Petition No.398 of 2003 was also filed by the applicant under Section 13 of the Hindu Marriage Act.. The aforesaid judicial proceedings demonstrate that there was a long standing dispute between applicant and informant.

6. In the present case the informant has levelled serious allegations against the applicant to humiliate him. No medical report about the victim has been produced in support of the allegation of rape allegedly committed by the applicant with his daughter. The victim is being misused by the informant. The applicant is a Lekpal and is languishing 19.01.2020. It is further submitted that there is no substantial progress in trial and the entire order sheet of the case is brought on record.

7. It is also submitted that the marriage of the applicant was solemnized with the informant on 07.03.2002 and for the reason of sole matrimonial dispute the informant left house of the applicant on 12.03.2003 and the prosecutrix was born on 17.04.2004. There was a compromise between the parties on 03.06.2011 and ultimately applicant took divorce with the informant on 04.01.2020 while the present first information report has been lodged on 12.01.2020. The prosecutrix was admitted to the Vanasthali School with the consent of the parties in the year 2019. It is also submitted that during period 2003-2011 the prosecutrix remained at the natal home. It is also submitted that there are material contradiction in the statement of the victim recorded under Section 161 and 164 Cr.P.C. In her statement under Section 164 Cr.P.C. she improved the prosecution story and made allegation of gang rape against some persons including the lawyer of the applicant who has been granted bail by the Co-ordinate Bench of this Court vide order dated 23.12.2021 in Criminal Misc. Bail Application No.16863 of 2021. No averment was ever made in the first information report about the

gang rape committed with the prosecutrix. It is also submitted that so far as the allegations against the applicant are concerned that he committed rape when prosecutrix was admitted in the Vanasthali School is not corroborated with any evidence. The statement of her classmate Arushi and Bhumika were not recorded by the Investigating Officer. It is also submitted that after the recording of the statement under Section 164 Cr.P.C. additional statement of the prosecutrix was recorded and in additional statement she made material improvement which were not referred by prosecutrix in her statement under Section 161 and 164 Cr.P.C. It is also submitted that statement of doctor Sudha Singh was recorded and it is not clear that who was the lady Radha Devi who brought the Bitto for medical examination. The identity of 'Bitto' is also doubtful and does not indicate towards the victim, therefore, the medical report also does not corroborate the prosecution version and theory of rape or gang rape is completely bellied. It is also submitted that the diary of the prosecutrix is also annexed with the bail application which indicate that the nature of the letters and writing she used to express. It is also submitted that some photograph are also placed on record which also bellied the theory of the prosecution. It is further submitted that applicant is languishing in jail since 19.01.2020 having no criminal history and that in case he is released on bail, he will not misuse the liberty of bail and will cooperate in trial.

8. In support of his submission, learned counsel for the applicant placed reliance upon the judgment of Apex Court in Radhu Vs. State of Madhya Pradesh, (2007) 12 SCC 57 and referred the following observation :

"The courts should, at the same time, bear in mind that false charges of rape are not uncommon. There have also been rare instances where a parent has persuaded a gullible or obedient daughter to make a false charge of a rape either to take revenge or extort money or to get rid of financial liability. Whether there was rape or not would depend ultimately on the facts and circumstances of each case."

9. Per contra, the learned Additional Government Advocate assisted by learned counsel for the informant argued that there are serious allegations against the applicant made by the informant (wife of applicant) and prosecutrix, who is the daughter of the applicant. In her statement under Section 161 and 164 Cr.P.C. she made severe allegations against the applicant committing rape with her, therefore, applicant is not entitled to be released on bail.

10. I have heard learned counsel for the parties and perused the record.

11. Prima facie the perusal of the statement of the informant indicates that the informant and her daughter did not remain together with the applicant since 2003 to 2011. The applicant filed a petition under Section 13 of the Hindu Marriage Act against the informant. There were several matrimonial disputes between the informant and the applicant and ultimately the applicant and informant divorced each other on 04.01.2020. So far as allegation of rape with the prosecutrix by the applicant is concerned medical report does not corroborate the aforesaid version. It is submitted that the informant and her daughter were living separately since the year 2003 to 2011.

12. Considering the entire facts and circumstances of the case, submissions of learned counsel for the parties, nature of evidence and all attending facts and circumstances of the case, without expressing any opinion on merits of the case, the Court is of the view that the applicant has made out a case for bail. The bail application is allowed.

13. Let the applicant Pravesh Singh Tomar in the aforesaid crime be released on bail on furnishing a personal bond and two sureties each in the like amount to the satisfaction of court concerned subject to the following conditions:

(1). The applicant will not tamper with the prosecution evidence during the trial.

(2). The applicant will not influence any witness.

(3). The applicant will appear before the trial Court on the date fixed, unless personal presence is exempted.

(4). The applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court to any police officer or tamper with the evidence.

14. In case of breach of any of the above condition, the prosecution shall be at liberty to move an application before this Court seeking cancellation of the bail.

15. Any observation made above shall not be treated as any finding on the merit and shall not prejudice the trial.

Order Date :- 22.5.2023 Mohit